

MAINS MASTER PROGRAM (MMP) 2024
ETHICS – 16

CASE STUDY # 01

You are a branch manager in a local cooperative bank, well known for your compassion and consideration towards your employees. However, one day you come to know about an employee indulged in financial fraud. As such fraud threatens the credibility of the bank itself, you are required to take strict action. You therefore decide to remove the person from the job.

However, you know that the person comes from financially not so well-to-do background. His son has some medical condition that requires regular and costly medication. Upon hearing your intent to remove him, his wife comes to your office, requesting you not to do so. She starts crying and begging for mercy. You also know that if removed, everybody in the village will come to know of it and the entire family will lose face in the neighborhood. He won't be able to find any other job.

1. Identify the ethical dilemma involved.
2. How will you react to the situation
3. What course of action will you take?

ANSWER –

Fact of the case –

1. Employee indulged in fraud
2. Credibility of the bank at stake
3. I have removed the person from the job
4. Person not so well economic background
5. Wife demands sympathy and compassion

Responsibilities in front of me –

1. Punishing the fraudulent behavior
2. Sending right message
3. Holding the credibility of the bank intact
4. Be compassionate to someone in need

This case study showcases an ethical dilemma situation in front of me. Here situation posits in front of me a need to prioritize between 2 important ethical values – **legal duty and compassion/forgiveness**.

1. Ethical Dilemmas involved -

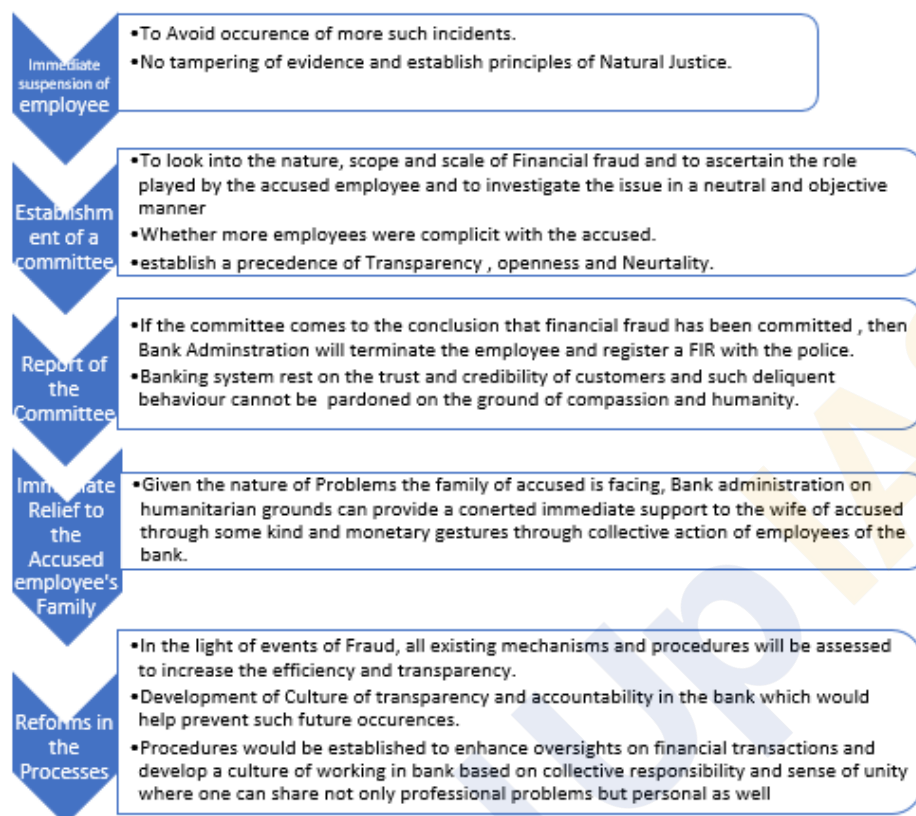
This case study involves the following Ethical dilemmas:

- Showing compassion towards the Employee and pardoning him Vs following set rules/procedures for financial frauds which will lead to his removal from job.
- Whether to Give Primacy to Individual Concerns like Financial Safety Vs Maintenance of Institutional Stability and Social order.

2. My response to the situation –

- As Banking system has its foundation on the trust and credibility enjoined to it by the customers, any kind of financial fraud leaves a strain on the fabric of the banking system for example YES bank or PMC bank Crisis.
- In this case, priority of the Bank administration should be to ascertain the scope and scale of fraud involved in objective and transparent manner and to take corresponding actions so as to redeem the financial losses. Such Acts would further bolster the trust of the Customers in the institution.
- On the other hand, any institution/organisation is as good as its employees. The overall efficiency and effectiveness of organization lies on the quality of relationship the organization shares with their employees.
- Therefore Bank administration should respond in an emotionally intelligent manner to the accused employee by listening to their concerns to understand their position and empathize with them, given their personal and domestic problems.
- However this must be done at cost of the credibility of an organization. So the some substantial actions, as per provisions, must be taken against the employee so that the right message is sent and also trust of people in bank administration is kept alive.

3. Course of action –



The situations arising out of Ethical dilemmas always puts the pressure on the individual to cautiously pursue a solution which maintains a fine balance between our emotional agency and the regulatory structure and framework within which duties are performed. Every Public servant / Individual should strive towards navigating such hurdles by being rational and yet being attached to the humane aspect(emotional) of our existence.

CASE STUDY # 02

You are a civilian residing in an area where a group of people are known to be involved in criminal activities. There is no one ready to become a witness against them and because of this reason they escape punishment and are a threat to society itself.

Later one night, you saw some notorious people from the same group eve-teasing few girls coming back from their usual work, in front of your house. The group of girls seeing you nearby asked for your help, but because of the fear of the goons you thought it to be good to keep yourself away from their affairs. Fortunately the girls somehow managed to escape. The next day they decide to file a complaint against the goons and iterate your name as a witness to the incident that took place the earlier night. An investigation officer arrives there later to inquire and asks you about the incident in order to file a report. Also no other witness is coming forward to testify and help the victims. Knowing the fact that your statement against the goons can pose danger to you and your family, your wife advises not to do so.

- (a) Elaborate the dilemma in front of you.
- (b) Will you give your statement? Justify your choice.
- (c) How will you execute your choice?

ANSWER:

The situation places in front of me dilemma in front of me wherein I have to choose between helping the girls or saving me and my own family members' lives. The situation is serious as there is clear cut danger to life of my family members and also that of the victim girls.

(a) Ethical Dilemma –

The situation is a classic case of the trauma and difficulties a woman has to face in this society due to deeply entrenched patriarchal and misogynist attitudes of some men and the collective apathy and silence of society in standing up against incidents which doesn't directly concern them. In the given situation following ethical values demand my action -

Values -

Courage to speak up against wrong, Integrity, Gender sensitivity and equality, Social discipline, Social Responsibility, Justice

On the other hand, my family member needs my action to be considerate towards their life. I also have responsibility towards them. I am also responsible to my own life. So clear cut dilemma in front of me is Courage Vs Concern.

(b) My choice –

Considering the seriousness of the situation I will certainly give my statement against the goons.

Because –

1. There are very less such incidences were one gets chance to be part of justice. I have to play my part as a responsible citizen.
2. It is not just about this incidence alone, it's about many such incidents done by the same goons. Speaking against injustice is my utmost duty.
3. Also I had not play my part when the incident was happening. I could have helped the girls at the time of incident. It was mere luck that nothing serious happened to them. So now, I need to get over the guilt I have hence this is the opportunity to achieve that.
4. If now the goons are left scot-free most likely they will repeat the crime harming many more women. I will be responsible, to that extent, for those future incidences.
5. Today it was fate of these girls, tomorrow it might be that of my wife's and daughter's. So by not giving statement I am harming my family members more.

(c) Execution -

Time Frame	Action	Reason
Short Term	1. Become a Witness to the case and cooperate with the police.	• For the Pursuit of Justice • Registering my resistance to Criminal agents • In solidarity with Victims of eve teasing • Act as a deterrent to criminal agents
	2. Approach institute dedicated for women empowerment (NCW, SCW), Local representative of legislative assembly to bring matter to their cognizance.	• A collective and institutional approach gives a huge impetus to the cause and diffuses power asymmetry between victims and aggressors. • Involve a diverse set of people from different spheres thereby creating more emphasis
	3. Approach media agencies to cover such Incidents of eve teasing and generate public discourse on it.	• Media is the voice of the powerless ordinary citizen and will bolster the spirit of the community to stand against such

Medium & Long Term		incidents. • Additionally , more such events will be reported and will generate a deep and broad public discourse
	4. Work towards forming a strong community feeling in the neighborhood through increased engagement of RWAs in local affairs.	• Communities form a strong tool of social control to control such deviant behavior and maintain a healthy environment for individuals to participate in various social processes.
	5. Engaging community in partnership with police (Community Policing) to create safe , open and inclusive spaces.	• By engaging and partnering with police, our communities can be eyes and ears of police and avert such anti social elements to capture the community space and nip it in the bud.

CASE STUDY # 03

Your family is living in a low-income urban locality which lacks basic amenities. Due to neglect by the local administration in providing basic supplies, local goons, headed by a family with strong political connections, have established themselves as the landlords and patrons. They have provided your family with a place to live in the city and you feel obligated towards them. However, they are also notorious for criminal activities in the locality but no one speaks against them. One of the members of that particular family is on the fray for the upcoming general elections. He has been vociferously exerting that you people form his primary vote bank as he and his family has played a central role in safeguarding you families and helped you all to settle in the city. You know the person is a criminal and do not want to vote him.

A week before the elections he comes to your locality and distributes money to each family asking for vote. It is almost impossible to not take his offered money or deny him your share of vote on the face. As such you took the money but your conscience is not allowing you to either vote or keep the money.

- a. Evaluate the options available to you
- b. Choose one of the options with justification

ANSWER –

The given case deals with the lack of performance of the duties of the local administration and consequently the vulnerable being left at mercy of the strongmen to dictate terms in society. The case study presents a dilemma before a poor man whose conscience does not allow him to take money but saying no to the local goons upfront will create survival problem for him and his family.

FACTS of the case :

- 1) Local administration getting replaced by local goon-turned patron
- 2) I am poor and my family dependent on economic support of the patron
- 3) The patron involved in criminal activity
- 4) Money is offered by the patron to manipulate elections
- 5) Exploitation of the weak by strong

STAKEHOLDERS:

- 1) Myself and my family
- 2) Local goons
- 3) Society at large

Dilemma in front of me –

Free and fair election vs my and my family's survival

a. Options available to me:

Sr. No	Option	Merit	Demerit
Option-1	Do not return the money and vote for the landlord.	1) It will help you and your family in the <u>future</u> . 2) The basic amenities are taken care of.	1) Gives promotion to criminalisation of politics. 2) After getting elected the local goons might not help.
Option-2	Return the money and vote as per your own will.	1) Conscience is realised. 2) Criminals can be abstained from entering politics.	1) The local goons can harm me or my family. 2) Basic amenities can be taken away.
Option-3	Keep the money but vote as per your will	1) No fight with the goons, family is safe 2) Free will is realised.	1) Guilt of having taken favour from the goons. 2) On not getting elected he might harm the poor people.

b. My choice –

1. I will choose option 3 to keep intact my conscience and exercise my free will. The democratic credentials are realised completely when people make the elected representatives accountable.
2. Here the primary responsibility should be to bring the local government to task through instruments of citizen charter, Pressure groups, NGOs, RTIs etc.
3. The people should demand their local amenities to be made in a liveable condition. The basic infrastructure should be restored. The process of complaint against the local government should be followed.

4. The district administration should be informed of the lack of responsibility on the part of the local administration. Further, on non compliance the use of RTI can be made.
5. The fundamental solution lies in citizen participation in governance. The election to the local administration vests the power in people. This should be made use in upcoming elections to elect the right candidate.
6. Only the development agenda and welfare of people should be the criteria for election. This will make the local administration responsible and know that ultimate power resides in hands of the people.
7. To address the lack of conscience on my part I would take pragmatic solution:
 - Since the local goons can't be fought upfront the money can be taken but voting should be done as per their free will by voting the candidate of their choice.
 - The freedom of expression is uplifted and the money can be used for social cause so as to reduce personal guilt. In this way the problem can be addressed in short term. But the long term solution lies in citizen participation in the governance process.
 - The election process forms the backbone of a democracy. People express their will and confidence through elections. The elected government should serve the people with utmost integrity.
 - The election of anti-social elements shows how criminalisation of politics is taking place. This should be stopped at any cost so that the confidence of people is restored and effective and efficient governance can be seen at the grassroot levels.
 - The trio of values i.e. ART or accountability responsibility and transparency should be the basis of serving the people who are the ultimate sovereign in a democracy.

CASE STUDY # 04

You are the newly appointed Manager of a renowned construction company which has not been performing very well since last one decade. Your boss, the general manager of the company, tells you in the course of event about a construction contract which can change your fortunes, along with giving huge profits to the company. This is a make or break situation for the company and provides one last chance to bring back the company to the right track. So, you made an excellent preparation for grabbing the contract, leaving no stone unturned.

On the day of presentation of your report, when you were heading to the venue to clinch the project for your company, you saw poor labourer hit by a car. The car which hit fled away from the scene in a blink of eye. His condition seems very critical and nobody seems to stop or come forward to help him. You are afraid that if you stop, you will definitely be late for the meeting and your competitors might grab the contract. And if you leave the poor man, there is meagre chance that he will survive. Missing the meeting or reaching late will definitely carry serious repercussions on your career too, as your boss believes that you are the right man to bring back the company to its old glory.

(a) What would you have done in such a situation?

(b) Justify your actions focusing on ethical aspects involved in it.

Answer -

The above case study talks about dilemma being faced between professional ethics and personal ethics of saving the life of a labourer who has been hit.

Facts:

1. Very crucial deal to be attended where company's fortunes are at stake
2. My career progression at stake
3. Life of poor labourer in danger
4. Lack of time and priority to be set
5. Life of a labourer vs company's and my own future

Stakeholders:

1. Myself
2. Company in which I work
3. Poor labourer

Options available to me:

Sr. No	Option	Merit	Demerit
Option-1	Going to work straight without caring about the labourer	1) Company fortunes and my career will revive and will have positive implications in future. 2) My reputation as reliable person will increase and my professional ethics are intact.	1) Life of poor labourer is at stake and he will die if necessary medical help is not served. 2) Cognitive dissonance as it will be inhuman to leave someone dying on road.
Option-2	Saving the man from dying by taking him to hospital and reaching the meeting late.	1) Life of the labourer will be saved. 2) Compassion will be shown which is an important ethical principle.	1) Puts a question mark on my professional abilities. 2) Company fortunes will be doomed.
Option-3	Contacting someone who can take the labourer to hospital while reaching the meeting on time.	1) Saving the life of labourer and contract can be grabbed by reaching on time. Cognitive dissonance can be done away with	You might not be able to do both things simultaneously and might compromise on one of the above.

Solution –

In the above situation I consider saving the life of a poor labourer is very important. My conscience will not allow me to be anything other than to act according to compassion, as my helping him is inevitable. At the same time, me reaching at the meeting venue is very crucial as it is very important meeting. Considering the situation following are my responsibilities –

1. Making sure the labourer reaches hospital as soon as possible
2. Try reaching the meeting in time or with least possible delay

I will choose option 3 and my actions will be -

1. With respect to the labourer my major task ahead is to take him to nearby hospital. That will consume some of time. In this context I will try to contact the local administration or passing by vehicles or a nearby relative or friend, so that she can reach the spot in before I can leave for meeting. I will take him to nearby hospital with my car and I will be with him till another help arrives. As the labourer need some human support and not necessarily mine, any other person can stay there as support to release me. Meanwhile I will also call ambulance or similar services.
2. I will also contact concern officials regarding meeting. Inform them about incidents [and assure that I will try to reach with least possible delays. Once I reach the place of meeting I would
3. While my professional integrity is realised when I am able to perform well in my profession. This will show my commitment towards my work and dutifulness. My attitude towards my work will be admired which will help in grabbing the company contract and also help in my career progression. In this way I will be able to maintain a balance between my professional and personal ethics.

In this way the harm can be minimised. Service before self should be the motto in life. The society is best served. It will give ultimate satisfaction and also makes you a responsible citizen of a country. While the government has also brought the good Samaritan law to help the people in need and make the aid available in the golden hour. This will help save the precious lives as well. At the same time the organization can progress when it has trust of its employees who can stand up in need and show their potential. The organisational goals and personal goals should align to reach the highest level of professional integrity.

CASE STUDY # 05

You are the Chief District Medical Officer of a backward district. There are very few qualified doctors in your district and even less works for the headquarter hospital. As such absenteeism and unprofessionalism is a common scene in the hospital premise. But quite a few quacks are providing services at the grassroots level to those people who are not able to reach the institutionalized health care system because of the trust deficit created in due course of time.

Recently, a tragedy came to light in your district wherein 46 people reported HIV positive in the last couple of months, allegedly after a quack used a common syringe to administer an injection. When you decided to take strict action against quacks, dissatisfied villagers initially murmured and later gathered to protest against your decision outside your office.

What would you do in such a situation? Justify your action.

Give reasons for such incidents taking place across the country in general and backward areas in particular? Suggest measures to prevent its occurrence.

ANSWER:

As CDMO, it's my responsibility to have district health system work to the satisfaction of general public. My role includes both administrative discipline and also quality service delivery. Also, with respect to victims of HIV infections need extra sensitivity from administration as the wrong happened with them is irreversible.

Facts of the case

1. Lack of doctors and overall capacity in public health care system.
2. Absenteeism and unprofessionalism in hospital leads to trust deficit among people
3. Few quacks are providing services at the grassroots level
4. Spread of HIV to 46 people due to negligence of Quack.
5. Dissatisfied villagers protesting against my action against quacks

Stakeholders

1. Victims of HIV infection
2. Public in general
3. Doctors and staff
4. Quacks

My Responsibility–

1. Urgent action w.r.t. the 46 infected patients and their families
2. Restricting further spread of HIV
3. Strict action against quacks
4. Actions against lackadaisical doctors and other staff
5. Persuading villagers
6. Bring overall discipline in hospital to win back trust of people

Challenges in front of me –

1. People protesting against my action against quacks
2. Overall discipline in the hospital is very low
3. Restricting further spread of HIV

Course of action

1. First priority in this case is to take strict action against quacks as well as give justifiable response to protesting dissatisfied villagers.
 2. Strict action against quacks will stop further infection of HIV spread to people. Because Quack doesn't have practical knowledge of medicine and operating procedures while dealing with patients. Moreover Quacks treating people are against law as there not licensed practitioners.
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1. To gain confidence of dissatisfied villagers, I will try to communicate future agenda with them for **persuasion** with help of local leader like Sarpanch.
 - Suspension order for those doctors and staff who are responsible for absenteeism and unprofessionalism to gain trust of public. Because such behaviour is against code of conduct of profession.
 - Proper guidelines about capacity building of public health care in District with focus on accessibility, availability and affordability. Details Report to State administration for Funding requirement.
 - People should be made aware about malpractices of quacks and illegality of practice
 2. Still villagers aren't stopping protest then strict police action would be advisable because their action is hindrance to legal action of District civil hospital

Reasons of such incidents taking place in country are:-

Health sector in India is highly resource crunch as public expenditure on health is only 1.3% of GDP. Doctor patient ratio 1:1445 was skewed and behind WHO prescribed ratio 1:1000. Proliferation of quacks can be seen as results of above lack capacity building in health system.

1. lack of availability and affordability of health care in Remote areas
2. Lack of skilled human Resource
 - Skilled doctors are not ready to serve remote areas
 - Vacancies and absenteeism makes situation further worst.
3. Unprofessionalism in doctors results into trust deficit among peoples.
4. High cost of health care even in public health care centres as compare to quacks.
5. Illiteracy and local custom belief in remote areas are also responsible. So patients turn to cheaply and easily available quacks which give speedy resolution.

Measures to prevent such incidents in future:-

Short term measures

1. Awareness drive in every village with help of NGO and Sarpanch regarding illegality of Quacks
2. Police action against quacks doing practice
3. Prepare Code of conduct for medical professional with considering demands from both practioners and as well as demands of villagers
4. Fill vacancies in health system
5. Organise a sensitisation camp for practitioners so that they would be professional in their conduct.

Long term Solutions

1. Request Ban on illegal practices with changes in relevant law
2. Bridge course for those having traditional knowledge of medicines so that they can have license and procedural guidelines of modern health practices.

CASE STUDY # 06

You are a Superintendent of Police (SP) in a district known for caste-related conflicts. Meanwhile you come across distressing news of honour killing of a couple due to inter-caste marriage. It is alleged that the girl's parents are involved in this heinous crime. The caste panchayat is said to have sanctioned and supported this act in the name of tradition and customs.

On the one hand, the girl comes from a politically active family, where her uncle is the sitting MLA. It is being spread in the news that the local police, due to political pressure, is treating it as a suicide case. On the other hand, the boy's relatives and some Human Rights activists who have come forward to the rescue, have now started protesting with a demand for judicial enquiry into the overall handling of the case. They are demanding transfer of some local police officers for alleged collusion with the MLA and seeking appointment of a special investigation officer by the High Court.

However, the Panchayat and other people of Girl's village are rallying behind her parents and the said MLA of the area. They are threatening violent protests if the girl's parents are arrested. They claim that it's a clear case of suicide because they all had collectively banished the boy and his family for indulging in inter-caste marriage against village traditions. They are still continuing to boycott the boy's family, which now fears threat to their lives.

- a. What would you do to diffuse the volatile situation?
- b. Every solution/action that you suggest will have a positive and a negative impact. Analyze the consequences of each of your suggested actions.
- c. How would you make sure that such an incidents do not recur in you district.

ANSWER:**Facts of the case -**

- a. Couple got murdered as, Panchayat sanctioned, honour killing in my jurisdiction
- b. Honour Killing treated as Suicide due to politico-police nexus.
- c. Human rights activists demand special investigation by High Court
- c. Villagers as they rallying behind crime perpetrators.
- d. Boycott of boy's family

Stakeholders -

1. Boy's family
2. Girl's parents, Local MLA , Caste Panchayat, villagers
3. Local police

4. Progressive outlook of society

My responsibilities –

1. Uninfluenced criminal investigation of the incident
2. Controlling unlawful activities of Caste Panchayat and villagers involved
3. Safety and security of boy's parents and HR activists
4. Overall law and order in the area

Challenges in front of me -

1. Deep rooted issue of honor killing and caste discrimination
2. Political involvement and also sensitive nature of issue
3. Strong influence of Caste Panchayat over people
4. Activists and media involvement demands additional caution
5. Demand for judicial enquiry by High Court

(a) Action to diffuse volatile situation:-

1. I will announce renewed enquiry by District police with SP as head to give assurance of justice to victims. Also suspend local police officer due to negligence and incapacity.
2. Demand of boy's family of judicial enquiry can't be allowed as it will lead to violent protest from Villagers.
3. I will immediately give police protection to boy's family.
4. Strict warning will be given to those who are trying to implement boycott

(b) Analysis of actions:-

Action	Positives impact	Negatives impact	to reduce negative impact
I will announce renewed enquiry by District police with SP as head to give assurance of justice to victims	the process will be made faster and impartial. Right message is sent improving trust of people in system.	Boys family and human rights organization will not be happy	they will be persuaded through discussion and assurance to them about justice
Suspend concerned local police officer for negligence and incapacity.	The culprit officer is punished and the right message is sent in the department	Some official in the department might turn non cooperative.	they will be persuaded through discussion and also making them aware about their duty

Give police protection to boy's family	it's a most important legal duty. And the family will be protected from possible danger. And strong presence of Police is highlighted	NA	NA
Warn those who are trying to implement boycott, as its illegal	Further injustice against boys family is constrained. Law and order is maintained	People might get agitated	They will be made aware and persuaded about legal provisions against boycott. If required strong action will be taken against those miscreants

(c) Steps to stop in future -

1. Speedy investigation in this case would send strong message to public against honor killing
2. Sensitisation of Villagers towards human rights and modern constitutional values of freedom to choose life partner, liberty, justice through media, NGO active help. This would be achieved through events and programme regarding this.
3. Proper SOP will be made on lines of what Odisha government did.
4. Through collaboration with general administration inter-caste marriages will be promoted, on the lines of Govt. of Maharashtra's step of giving sum of 2.5 lakhs to couple.

Caste panchayats are age old tradition based systems which lost relevance in modern time. So all stakeholders in society should work to eradicate it. Supreme Court has given legal sanction to inter-caste, inter-religious marriages and said that two adults are free to marry and "no third party" including Parents, society and caste panchayats has a right to harass or cause harm to them. Prevalence of honour killing shows systematic failure.

CASE STUDY # 07

Your elder brother served as the Principal of a government school for many years before being transferred to another school. As the principal he had to perform some administrative duties like assessing infrastructure requirements of the school and send reports to the District Education Officer (DEO) for their upkeep and up-gradation.

You are a Public Information Officer (PIO) in the same district's education department. One day, you receive an inquiry under RTI seeking information related to all the new infrastructure-related projects taken up in the school during your brother's tenure.

Prima facie, upon looking at the information being sought, you come to know that there are chances of allegation that some of those projects were perhaps unnecessary and didn't require up-gradation in the near term. It also seems that these projects were allotted to a person close to the then serving DEO and most preferably, your brother may have been nudged by the then DEO to send favorable reports for infrastructure projects.

What are the dilemmas you face? What will be your response to the situation?

ANSWER:**Facts**

1. *Prima Facie* chances of corruption/favouritism in education department
2. My brother may be involved
3. Information related to the same is asked under RTI
4. I have to take decision as PIO

Stakeholders

1. Me as Public information officer
2. Principal of Government school happen to be my brother
3. District education officer
4. RTI activist

Values to be discussed in case study

1. Probity of myself as PIO
2. Uprightness of Principal of government school
3. Lack of transparency in education department

Dilemmas faced by me in above case study

Case study deals with conflict of interest in my role. My brother is alleged to have involved in corruption. At the same time I am the in charge of public information in education department. This is case of private relationship vs professional integrity. Following are the things I would like to achieve –

1. Doing my duty of providing the information to activist to improve the trust of public
2. Try to reduce the hardship my brother may face as a symbol of gratitude towards him
3. Bring out any corruption that might have been part of the decisions

OPTIONS -

In this case technically, I have 3 options –

Sr. No	Option	Merit	Demerit
Option-1	Providing all the information irrespective of the consequences to my brother	1. Doing my duty 2. Corruption controlled 3. In case my brother is innocent he will be proven so	1. Hardship to my brother may increase
Option-2	Not providing information citing some escaping reason.	1. Protect my brother showing gratitude towards him	1. Breach of public trust 2. Party to corruption
Option-3	Providing partial and selective information to satisfy the activist and public at large	1. Protect my brother showing gratitude towards him 2. The activist and general public is satisfied	1. Lack of integrity 2. I will have to go through guilt 3. Public trust is breached 4. Party to corruption

CHOICE -

I would go with option-1, as PIO I have no choice of not providing for the information. So I will certainly provide all the information asked by RTI, as per guidelines of RTI Act. As per my professional integrity and code of conduct rules, this is right action. In addition to that I will also report to department internal committee for investigation of corruption.

(b) My Response to situation:

- 1) I will act per rules and regulation under RTI act. I will disclose information to RTI activist. This shows integrity and honesty in capacity of Public information officer. Also will helpful to trigger investigation in alleged corruption charges in education department.
- 2) I will also inform corruption committee in education department for internal enquiry to improve work culture with transparency and accountability principles.
- 3) As public servant I must need to show probity and put larger public welfare ahead of private relationship. Investigation will also able to find out whether there is pressure from DEO on my Brother when he was Principal of that government school. This is will ensure to remove corruption from system.
- 4) Culture of transparency will develop in education department regarding utilisation of public funds

CASE STUDY # 08

There is a government scheme going on under which "pucca house" (concrete house) is being built for Below Poverty Line (BPL) households. For the identification of beneficiaries, the Gram Panchayats have been told to prepare lists.

In one of the Gram Panchayats, when the Block Development Officer (BDO) of the said block visits for final scrutiny of beneficiaries, an old destitute widow comes up. She claims to be a BPL widow with no one in her family left. She complains to the BDO that the *Sarpanch* of the Panchayat hasn't included her name in the list of beneficiaries even though she is a genuine beneficiary.

On enquiring, the Sarpanch and other officials tell the BDO that she was provided a pucca house under the scheme in the previous round of last year but she sold it to someone else. And that she should not be again provided the benefit. Moreover, she is alone in the family and can live in mud-built-house. Also, there are other BPL families with often 6-7 members who need a pucca house more than her. However you have strict instructions not to exclude any deserving BPL family from the scheme.

- a. Analyse each of the following options with its consequences.
 1. Just ignore thinking about it because officially it is the work of the gram panchayat to decide the beneficiaries.
 2. Report the case to your higher authority.
- b. Provide with your own innovative approach towards the situation.

ANSWER -**Facts:**

1. Destitute claims sarpanch removed her name from list
2. Sarpanch claims she had got benefit of scheme but she had misused it.
3. BPL families need pucca house and there are legitimate also.
4. Strict instructions to BDO not exclude deserving BPL families form scheme.

Stakeholders

1. Gram Panchayat and Sarpanch
2. BDO
3. Destitute widow
4. BPL families in need of pucca house

Introduction

Pucca house is basic need that everybody should have. So government started Scheme for Providing Pucca house to BPL families. As gram Panchayat is nearest to ground realities so it has been given responsibility to prepare list of beneficiaries.

Options available to me are:

Sr. No	Option	Positive Consequences	Negative Consequences
Option-1	Just ignore thinking about it because officially it is the work of the gram panchayat to decide the beneficiaries.	1. As per strict instructions, BDO should not exclude deserving BPL families from scheme. 2. Gram panchayat has power to decide on inclusion and exclusion of beneficiaries. Also destitute was beneficiary last year.	This shows lack of empathy and compassion in behaviour of BDO
Option-2	Report the case to your higher authority.	1. This case shows there can such incidents were beneficiaries might have sold <u>pucca</u> house. Purpose of scheme then defeated and this leads to misuse of public funds (Indirect Corruption) 2. Above action shows value of probity in BDO as public servant. 3. Higher authority might take appropriate step of annual auditing and inspection of allocated <u>Pucca</u> houses under scheme. This will improve efficiency of scheme with objectivity.	BDO do have functional independence but reporting to higher authority, BDO is moving away from his responsibility.

b. My own innovative approach towards the situation -

1. Issue need to see through systematic approach. BPL destitute widow has no one in family. So she might not have any source of money for daily livelihood. As result she might have sold the house to third party for money. This requires details investigation of issue as such incidents might have taken place in other gram panchayats jurisdiction. So make internal enquiry committee to find out route cause of issue.
2. As public servant, BDO should show compassion towards weaker section society at the same time he should give priority to rules and regulations as per service conduct rules. So BDO won't allow including name of destitute widow in list of beneficiaries.
3. As aware and responsible public servant, BDO would provide other avenues to destitute woman
 - NGO help to find out old age house for Destitute as temporary measure
 - Inclusion of name of destitute under pension scheme for destitute persons
4. Suggestion to higher authority for changing rules regarding no registry of houses allocated under scheme in name of other person than intended beneficiary

Consequences of my approach -

- a. relief to widow destitute
- b. efficiency in scheme allocation
- c. rule of law prevails as BDO and gram Panchayats worked with honesty and integrity in preparing list of beneficiaries

Conclusion:

Implementation of government scheme requires continuous evaluation for intended objective. For that purpose all the stakeholder needs to perform function as per code of conduct also empathy and compassion are need to understand dynamic nature of society. This improves efficiency of government schemes.

CASE STUDY # 09

You are a teacher in a private school with a passion to teach young children. The school where you work is known for securing best of results of the students, especially class 10th and 12th. It charges handsome fees, and also provides good quality education. Most of the students are from financially sound affluent and middle class background.

One of your students, who will be appearing for class 12th examination, is from a middle class background. Due to some family related issue, she has not been able to pay fees for past two months. You happen to be the class teacher of the student and know about all these issues. As per the rules of the school administration, the student whose fees is due for more than 2 months is liable to be suspended and won't be allowed to write the final exams.

At the same time, the school has already incurred huge loss in the past due to recent order of the court directing schools not to take any fees from children for one semester due to the pandemic situation in the country. Therefore, even the administration is adamant on timely payment of the full fees. The girl student is very hardworking and talented, and has been among the top students of her class. You are afraid that if the money is not arranged in time, she might have to lose a very crucial year of her life.

What course of action will you take and why?

ANSWER -

The above case study talks about how economic constraints can lead to deprivation of education in a child's life which is one of the foundational learnings. As a passionate teacher who takes teaching as a vocation, it becomes a responsibility to see that no child misses her education due to lack of money.

Facts:

1. Money constraint with the child
2. Passion of teaching
3. Losses incurred by the school due to pandemic

My course of action -

Since the education of the child is of utmost importance it has to be ensured that she does not miss her crucial year. This education in the formative years of the child will form his basic skills and development in her future.

But at the same time the school is facing huge losses. And it has been strictly mandated to collect the fees. As a committed employee of the school it is my responsibility to see that the school does not bear any loss and rules are followed.

In this situation my course of action would be –

1. I will convey and explain the situation as a rare case to the administration to ask for more time for payment
2. Meanwhile I will also check whether I could help her from my personal earnings. As it is about one student's fees then I can pay for now so that she continues her studies and her parents can pay me back the money when they can arrange it.
3. Meanwhile I will also try to arrange alternative source of funding through my friends or some organisations working on the issue of child education viz- NGOs
4. I would also ask the student herself to write a letter to philanthropists request for help and I would try to contact the relevant persons through my personal contact.
5. I will further suggest the parents to look for government schemes in this regard. The overdraft facility of the Jan-dhan yojana can be availed.
6. I would also help them to avail educational loans from banks.

Justification of my actions:

Since the education forms a vital component in the development of the child it should be ensured at any cost. Being an employee it is also my responsibility towards the organisation to show work ethics and follow any rules and regulations. Economy is an important dimension to bring in development. Education and skill development brings up economy which further reinforces the same. This forms a virtuous cycle of growth. The child's developmental needs should not be compromised at any cost. The government should take care that every child is able to complete his education successfully.

CASE STUDY # 10

You are a junior doctor in a government hospital, which is highly equipped and is always in the news for good care. A pandemic of communicable disease is currently prevalent in the country to counter which the whole nation is in lockdown. Your Professor has asked a group of doctors including you to visit a neighbourhood for the screening of suspected individuals for the disease. The hospital administration has not provided adequate personal protective equipment (PPE) for the safety of doctors. On the one hand, you think it's your duty as a doctor to complete the task, while on the other hand, you have concerns of getting exposed to the disease yourself.

1. What are the options available to you?
2. Evaluate each of these options and choose the option which you would adopt, giving reasons.

ANSWER

The case study talks about the hardships faced by the doctors in times of the present pandemic especially due to lack of safety equipments.

Facts:

1. Emergency services are needed by me as doctor
2. Lack of PPE kits
3. Infectious disease can affect me if lack of PPE

Options available:

In this situation following options are available to me -

Sr. No	Option	Merit	Demerit
Option-1	Refuse to go for screening people without safety gear	1) Safety of self is of prime importance 2) the problems of lack of infrastructure should not be borne by the doctors	1) shows the escapist attitude of the doctors 2) <u>doctor</u> is a vocation. Doctors can't refuse straightway.
Option-2	Go ahead to screening the people without safety gears	1) Shows the dedication to duty 2) Shows spirit of public service	1) Might get infected with the disease 2) In such a case it will defer other doctors also to work.
Option-3	Arrange for the safety equipments and then go for screening	1) The doctor will not be infected 2) screening of people can be done effectively	1) Safety gears might not be arranged on time

My Choice –

I will go for OPTION 3 because:

1. It will ensure safety of the doctors and also the screening of the people can be done on time. This will help in stopping the spread of the disease. First of all the hospital administration can be asked to release the safety equipments on immediate basis.
2. If the administration is not able to do the required work, companies involved in manufacturing of medical equipments can be asked to provide the required safety equipments by providing tax incentives. Alternatively it can be done by asking the government to take timely intervention in form of supporting the start-ups through setting up the start up fund to fund to motivate them.
3. Initiatives like CSR funds, NGOS etc can also be contacted to get the safety equipments on time.
4. If required the safety gears can also be made to import from the foreign countries on the immediate basis.

Conclusion:

The present pandemic requires the frontline workers to give their hundred percent in the effort to fight the pandemic. But as the administration should take proper precautions for health and safety of the health workers. The doctors can work wholeheartedly only when they are assured of their due care in terms of finances, health, insurance and mental and emotional support. Also as a society it is our responsibility to uplift the morale of the health workers and come together in the time of their need. We together as a community can fight the pandemic.

CASE STUDY # 11

You are appointed as a District Magistrate in a rural district. Recently, an alcohol brewing unit was established in a village in your jurisdiction.

Because of many favourable factors, like good quality raw material, cheap labour and better connectivity, it soon starts making profits and is providing good tax income to the state. It is also providing considerable direct and indirect employment opportunities in the nearby area where otherwise there are not many livelihood opportunities. Local farmers are also happy due to the assured procurement of their harvest by the company.

However, soon, with the easy availability of alcohol in the neighbourhood, there is increasing consumption too. Local hospitals are getting more cases of addiction and other related adverse health effects. Recently, the local police have started registering more instances of domestic abuse. Some NGOs in the vicinity, working in gender-related issues, are organizing awareness programmes but their overall impact is very less. As the instances of domestic violence increase, the women in the area come together and start protesting outside your office. They demand the alcohol factory to be closed and the district to be alcohol free.

(a) Analyse the situation in front of you.

(b) What is the course of action you will take?

Answer -

The brewing factory offers positive externalities such as employment, connectivity, and other benefits but the easy availability of alcohol has increased addiction and domestic abuse. The case involves balancing between the positive and negative consequences of the presence of brewery.

Facts of the case -

1. Farmers benefit from easier procurement of produce.
2. The brewery profits from cheap labour and access to raw material.
3. Villagers have gained from employment.
4. Rampant alcohol addiction.
5. Increase in domestic violence linked to alcohol abuse.
6. The state benefits from an increase in tax revenue.

Stakeholder involved -

1. The company
2. Villagers benefitting better procurement and employment.
3. Addicted villagers.

4. Women impacted by the increase in domestic violence.

(a) Analysis of the situation –

This situation requires administrative intervention via my decision towards balancing the two conflicting realities. The best scenario would be the brewery running without any negative social externalities. There are also some legal issues involved as the company may go to court as they have already invested in the brewery. After due approvals from the administration. In case administration decides to close down the brewery, it needs to compensate the brewery owner duly. In this situation my whole efforts would be to regulate the consumption of liquor than to close down the brewery straightaway.

(b) My course of action -

1. I will undertake a broader consultative process involving the lowering of local liquor stocks and improved social infrastructure for addicts and domestic violence victims through NGOs and government effort.
2. I will try convince the protesters about the benefits of the brewery and make them understand the implications of its closure. I would bring the management onboard in reducing stock limits in the neighbourhood thereby reducing local supply.
3. I would focus on improving social infrastructure which would help address the issues of those already affected by alcohol abuse.

Justification -

1. Addiction and domestic violence in the neighbourhood would drop due to lower supply. The Brewery won't lose revenue and has to merely reallocate stocks. The government too won't lose revenue. The villagers won't lose procurement or employment. Improved social infrastructure would help placate protesters and ensure that there is enough support for addicts and victims of domestic violence.

As the DM I am expected to show leadership in resolving the issue and also ensure that the interests of all stakeholders are balanced. Further, there is a need to be empathetic towards those affected by alcohol addiction in the neighbourhood. Thus the way forward is to build consensus among the stakeholders and ensure a transparent balanced resolution.

CASE STUDY # 12

Your childhood friend resigned from a highly paying job in an MNC with the purpose of working for a social cause, especially in the education sector to help in building a new India. For that he wants to setup a school dedicated to impart education to children from marginalized and poor section of society, who happen to drop out due to unfortunate life circumstances and fail to live a dignified life.

However, in the process of setting up such a school he faced a lot of difficulties. The state machinery is not responsive to his requests and submission for clearances and permissions. Also many government functionaries have been asking for money in exchange of timely passing of files. As the procedural delays are consuming a lot of time and efforts and there has hardly been any progress on ground. Soon, he gets frustrated, demoralized and start lamenting that the reality is entirely different from imaginary expectation.

Thinking of quitting his efforts to establish the school, he comes to you as a friend and asks for your opinion.

1. Indicate various options that you think are available in this situation.
2. How would you help him to evaluate these options and choose the most appropriate path to be adopted?

Answer –

My friend who has decided to give up a high-paying job to take up a social cause is troubled by the corruption and inefficiency plaguing some sections of the government. He is on the verge of giving up his dream to work towards marginalized children's education and seeks my advice.

Facts of the case –

1. My friend has resigned from a high paying job to take up a social cause displaying selflessness.
2. He intends to set up a school for marginalized children.
3. He faces delays and demands for bribes while trying to get permits for opening the school.
4. He is on the verge of giving up his dream due to the issues faced, and asks me for suggestion.

Stakeholders –

1. My friend
2. Few corrupt and inefficient government functionaries.

1. Options available –

Sr. No	Option	Merit	Demerit
Option-1	Advice my friend to give up his dream and <u>re-join</u> private employment.	1. No hassle of clearances 2. Can pursue the high paying employment he once had.	1. It would mean giving up on his dream. 2. The society at large stands to lose due to the non-opening of the school.
Option-2	Complain against the inefficient and corrupt functionaries and take legal recourse with courts to help expedite the process and punish corrupt officials.	1. Will ensure that the lawful procedure is followed. 2. The integrity of my friend remains intact. 3. Punitive action against corrupt officials.	1. Could take a long time to get resolved and thereby delay plans for the school. 2. Further hassle, expenses, and mental pressure to my friend due to long drawn anti-corruption and legal processes.
Option-3	Suggest bribing to get the work done.	1. It will ensure that the work gets done fast. 2. My friend <u>wouldn't</u> have to face mental pressure and hassle. 3. A greater good is done at a small cost in this case.	1. My friend's integrity is lost. 2. Corrupt practices are reinforced.

My Course of Actions –

- Delays are expected due to a shortage of manpower and resources. Though long delays may be attributed to inefficiency, my friend must understand the ground reality that the government is not essentially as efficient as a private enterprise.
- I would persuade him to get media attention to his project so that it gains recognition from civil society and builds pressure for timely approval from the government.

3. Filing an anonymous complaint with the respective vigilance departments would bring the corrupt officials under the radar of the vigilance department and force them to do their duty.
4. A framework to look into works of charity and social work that does not involve any suspected financial misappropriation can be instituted to help build trust with philanthropists.

CASE STUDY # 13

You are the collector of a district predominantly inhabited by tribal. A manufacturing unit is being set-up in your jurisdiction to produce an Ayurvedic medicine. This medicine is based on some naturally available herbs in the locality and uses traditional knowledge of the tribe and is expected to be a low-cost indigenous medicine to treat a widely prevalent illness across the country.

The company that is setting up the unit has received all the relevant clearances from the government. It has also promised to educate the tribal children and appropriately employ the tribal youth after imparting requisite skills. It has also decided to setup a dispensary to look after the health issues of the locals. There are also promises that the company would share the requisite percentage of profits that it earns by using tribal knowledge.

However some tribal are opposing this project. They fear for their traditional livelihood and also possibility of displacement. They also argue that with the establishment of the company, there will be influx of migrants that will dilute their culture. Some of them have actively started staging protests outside your office every-day. Your seniors have ordered you to persuade the locals and facilitate the establishment of the unit as decided by the government.

(a) Analyse the situation in front of you

(b) Suggest what course of action you would like to take, giving reasons.

ANSWER -

As the collector, I am expected to ensure that the private manufacturing unit keeps its promises of having a positive impact on the local tribal population. I am also expected to convince the protesting tribals and persuade them to give up the protest by explaining the plausible benefits of the unit.

Facts -

1. Tribals benefit from education to children and employment.
2. The Manufacturing unit produces affordable drugs that will help the entire nation.
3. The unit has also promised to compensate for the use of tribal knowledge.
4. Some tribals fear the loss of livelihood, displacement, and influx of outsiders.
5. Some tribals are protesting outside my office and I have been tasked to persuade them to give up protests.

Stakeholder involved –

1. Tribals in general.
2. Tribals eligible for employment in the factory
3. Protestors
4. The Medicine manufacturing unit.

(a) Analysis of the situation-

The concerns of the tribal protestors are legitimate and there is a need to reassure the protestors that the benefits outweigh the drawbacks. The risk of vested interests and time and resource constraints may not allow for a full-fledged consensus-building process but I would ensure that the protestors are made aware of the benefits through a consultative process involving as many stakeholders as possible. The intent is to persuade as many protestors as possible.

(b) Course of action

1. I will start a broader consultative process involving representatives from the Ayurvedic unit, protestors, and tribal villagers. Since only some of the tribals are opposed to the unit, stakeholder meetings would help protestors get an alternative perspective. It will ensure transparency.
2. I will try to convince the protestors about the benefits of the Ayurvedic unit. I would hold stakeholder meetings involving representatives from the different stakeholders to ensure that concerns about loss of livelihood, displacement, and influx of outsiders are addressed.
3. I will make sure that the manufacturing ensures that tribal ways of life are preserved to the maximum extent possible.
4. I will also set up institutional mechanisms for periodic review meetings to redress grievances and ensure that the promised benefits reach the tribals.

Persuading the tribals requires a combination of consultative meetings aimed at achieving consensus and setting up institutional mechanisms to ensure that the promises made by the Ayurvedic unit are adhered to and grievances are redressed periodically.

CASE STUDY # 14

The recently elected state government has banned liquor in the state one month ago based on popular demand and to address health concerns. For its effective implementation, it has undertaken some actions such as strict vigilance on state borders, new de-addiction centres and awareness drive among the public. However, since then 35 people, all of them age less than 40 years, have committed suicide due to non-availability of liquor. In reaction to that, the state government has directed the excise department to serve liquor to chronic alcoholics based on doctor's prescription.

1. What are the ethical issues involved in alcohol ban?
2. If you are the chairman of a committee taking the review of the ban and its implementation, what stance will you take in your report? Provide reasons for the same.

ANSWER -

The state government has banned liquor and has put in place vigilant measures to implement the ban. Despite de-addiction efforts many relatively young people have committed suicide due to withdrawal and the state has been forced to allow liquor for addicts based on doctor's prescription. The liquor ban and conditional exception involve a plethora of ethical issues that need to be considered by me as the chairman of the committee reviewing the ban.

Facts of the case -

1. The state government has implemented a strict ban on alcohol in the state.
2. Alcohol addiction and withdrawal are a real threat in the state.
3. The state government has attempted to mitigate the impact of alcohol withdrawal through de-addiction centres and has allowed alcohol to be served to addicts with a doctor's prescription.

Stakeholders involved –

1. Alcohol addicts.
2. The state government.
3. Health system
4. General public.

1. Ethical issues involved–**- State paternalism vs individual liberty**

It is an ethical question whether states have the right to impinge on individual autonomy on grounds of public health. In a liberal

democracy, adults have a right to live life as they wish provided they do not violate others' rights.

- **Forced withdrawal and impact on individual rights**

The other dilemma is around the *capacity of the health systems* to cope with those who will struggle both physiologically and psychologically due to the sudden non-consensual withdrawal of alcohol.

- **Alcohol as a treatment to alcohol addiction**

The ethical issue here is whether the state can wilfully sustain addiction that conspicuously results in the deterioration of the health of citizens just because it is a relatively less burdensome solution to the issue of sudden withdrawal.

- **Doctors' role**

It may be considered unethical for doctors who protect the health of patients to prescribe alcohol to individuals with withdrawal issues especially when other scientific ways to address the issue exist.

- **State's dilemma**

Finally, it may be difficult for the State to make unbiased decisions about this issue as there is an inherent conflict of interest where, on the one hand, the state has responsibility for the health of its citizens, and on the other hand, it is highly dependent on the revenue from the sale of alcohol.

2. My stance as Chairperson -

1. Alcohol addiction is rampant in the state and there is a visible need for the state to intervene keeping public interest in mind. Such state paternalism may seem illiberal but is required for the greater good of the society.
2. Considering the dearth of state infrastructure to treat sudden withdrawal I would recommend phasing the ban and progressively reducing the number of liquor licenses issued.
3. There is a need to identify individuals affected by alcohol addiction and withdrawal and provide them support during the various phases of the alcohol ban.
4. I would not recommend doctors prescribe alcohol to treat alcohol withdrawal as it may lead to an ethical dilemma for doctors, breed corrupt practices, and even reinforce addiction.

There is a need for the state to address the issue objectively and take into account the time and resources required to effectively implement an alcohol ban with minimal impact on the public. The state needs to progressively reduce alcohol consumption in the state while increasing awareness among the public and improving the health infrastructure required to deal with withdrawal.